

26STCV02543 26STCV02543

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-14

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Case Number: 26STCV02543 Hearing Date: September 14, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 309

TENTATIVE RULING

CHEOL HONG

vs.

SHIN JA KIM, et al.

Case

No.: 26STCV02543

Hearing Date: September 14, 2026

Defendants'

demurrer to the first, third, fourth, ninth, and twelfth causes of action is
OVERRULED.

Defendants'

motion to strike is DENIED.

On

1/26/2026, Plaintiff Cheol Hong (Plaintiff) filed suit against Shin Ja Kim and Michelle Lee (collectively, Defendants), alleging (1) breach of warranty of habitability; (2) breach of implied warranty of habitability; (3) violation of Civil Code section 1942.4; (4) violation of Civil Code section 1942.5; (5) negligence; (6) nuisance; (7) intentional infliction of emotional distress; (8) breach of contract; (9) breach of the covenant of quiet enjoyment; (10) breach of the covenant of quiet enjoyment; (11) violation of Business and Professions Code section 17200; and (12) violation of LAMC section 45.33.

On

5/12/2026, Defendants demurred to Plaintiff's first, third, fourth, ninth, and twelfth causes of action. Defendants also move to strike portions of the Complaint.

Discussion

Defendants

argue that Plaintiff's first, third, fourth, ninth, and twelfth causes of action are insufficiently pled.

After

review, the Court disagrees.

Plaintiff's

challenged claims are not subject to a heightened pleading standard. All causes of action are pled with sufficient facts to state a claim and to put Defendants on sufficient notice of the nature of the claims. For example, Plaintiff alleges that the habitability conditions at issue begun "in or around 2019" and have continued. This is sufficient at the pleadings stage.

Based on the

foregoing, Defendants' demurrer to the first, third, fourth, ninth, and twelfth causes of action is overruled.

Motion to Strike

Defendants

move to strike Plaintiff's prayer for punitive damages. Given that Plaintiff has operative claims for habitability issues, Plaintiff has necessarily alleged sufficient facts at the pleading stage which could show "...despicable conduct

which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code § 3294(c)(1).)

Based
on the foregoing, Defendants’ motion to strike is denied.

It is so ordered.

Dated: September
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at smcdept17@lacourt.org by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party’s email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.